

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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JONATHAN ELCOCK,

Plaintiff, **SUMMONS**

-against-

Index #

CITY OF NEW YORK, DETECTIVE DEVIN BAKER
Shield 1595, POLICE OFFICER RAFAEL MUSAYEV
Shield 6761, AND POLICE OFFICERS JOHN DOE #1-3,

Defendants.
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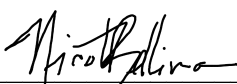
To the above named Defendants:

CITY OF NEW YORK, DETECTIVE DEVIN BAKER Shield 1595, POLICE
OFFICER RAFAEL MUSAYEV Shield 6761, and John Doe #1-3

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is the place in which the harm occurred.

Dated: November 6, 2023



Stoll, Glickman & Bellina, LLP
Attorney for Plaintiff
By: Nicole Bellina, Esq.
5030 Broadway Suite 652
New York, NY 10034
718-852-3710

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

JONATHAN ELCOCK,

Plaintiff, **COMPLAINT &
JURY DEMAND**

-against-

CITY OF NEW YORK, DETECTIVE DEVIN BAKER
Shield 1595, POLICE OFFICER RAFAEL MUSAYEV
Shield 6761, AND POLICE OFFICERS JOHN DOE #1-3,

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. § 1983 for the violation of his Fourth and Fourteenth Amendment rights, and the laws and Constitution of the State of New York.

2. The claim arises from a September 13, 2022 incident in which New York City Police Department (“NYPD”) officers of the 77th Precinct, acting under color of state law, falsely arrested Mr. Elcock and violated his rights.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff Jonathan Elcock is a resident of Kings County, New York.

5. The CITY OF NEW YORK (“City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the

NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention, and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

6. Defendant DETECTIVE DEVIN BAKER and POLICE OFFICER RAFAEL MUSAYEV were at all times here relevant police officers of the NYPD, and as such were acting in the capacity of agents, servants, and employees of the City of New York. On information and belief, at all times here relevant, Detective Baker and Police Officer Musayev were involved in the decision to arrest Plaintiff without probable cause and deny him due process or failed to intervene in the actions of their fellow officers when they observed them arresting Plaintiff without probable cause and denying him due process. They are sued in their individual capacity.

7. Defendant POLICE OFFICERS JOHN DOE ##1-3 were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agents, servants, and employees of the City of New York. At all times here relevant, the John Doe Defendants, whose true names are currently unknown to Plaintiff, were involved in the decision to arrest Plaintiff without probable cause and deny him due process or failed to intervene in the actions of their fellow officers when they observed their fellow officers arresting Plaintiff without probable cause and denying him due process. The John Doe Defendants are sued in their individual capacities.

8. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

9. Within 90 days of the events giving rise to these claims, Plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of the Notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

10. On September 13, 2022, at approximately 6:00 A.M., Plaintiff Elcock was asleep in his bed inside of 1120 Bergen St., Apartment 33W, in Brooklyn, NY.

11. Mr. Elcock's sister and young niece were also asleep in the bedroom.

12. All of a sudden, Mr. Elcock heard loud voices claiming to be police officers coming through the home. Out of fear, Mr. Elcock immediately put his hands behind his back, careful not to make any sudden movements. His sister and niece remained in their bed.

13. Approximately five officers stormed the bedroom with their guns drawn.

14. Mr. Elcock was handcuffed in his bed. He was taken from the room and searched. No contraband or weapons were found on him. Nevertheless, he was taken from the home, placed in a police car and driven to the 77th precinct.

15. At the precinct, Mr. Elcock was brought before the desk sergeant where the arresting officers acknowledged taking his iPhone and approximately \$12,000 in cash from his bag in his bedroom but did not provide him with a property voucher for either.

16. Mr. Elcock was detained in that cell for several hours without any legal justification. Eventually, he was released. No charges were ever brought against Mr. Elcock and no illegal substances were ever found in his home.

17. When Plaintiff returned to his home, he discovered that the officers had caused damage to his front door, his bed and his personal property.

18. Despite many phone calls by Plaintiff to the precinct and property clerk and several demands for his property, his iPhone and money have never been returned to him.

19. At all times during the events described above, the defendant officers were engaged in a joint venture and formed an agreement to violate Plaintiff's rights by arresting Mr. Elcock without probable cause, seizing his property and refusing to return it, and denying him due process. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

20. During all of the events above described, Defendants acted maliciously and with intent to injure Plaintiff.

DAMAGES

21. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution;
- b. Violation of his rights under Article I of the New York State Constitution;
- c. Damage to his property;
- d. Emotional trauma and suffering, including fear, terror, embarrassment, humiliation, frustration, extreme inconvenience, shame, and anxiety;
- e. Economic loss; and
- f. Deprivation of his liberty.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

22. The above paragraphs are here incorporated by reference.

23. The officer defendants wrongfully, illegally, and unjustifiably detained, arrested, and imprisoned Plaintiff, depriving him of his liberty. The officers illegally seized his property and failed to return it.

24. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff and the seizure of his property were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

25. All of this occurred without any illegal conduct by Plaintiff.

26. No official charges were ever filed against Plaintiff.

27. By pointing their guns at Plaintiff, the defendants used excessive force against him, and failed to intervene in each other's obviously illegal actions.

28. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights, and are liable to Plaintiff under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.

29. Plaintiff was damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

FALSE IMPRISONMENT

30. The above paragraphs are here incorporated by reference.

31. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

32. Defendants intended to confine Plaintiff, Plaintiff was conscious of his confinement, and did not consent to the confinement.

33. The confinement was not privileged.

34. Defendants, their officers, agents, servants and employees, were responsible for Plaintiff's detention and imprisonment during this period of time.

35. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

THIRD CAUSE OF ACTION
ASSAULT

36. The above paragraphs are here incorporated by reference.

37. By pointing their guns at Plaintiff, the defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and offensive touching.

38. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

FOURTH CAUSE OF ACTION
RESPONDEAT SUPERIOR

39. The above paragraphs are here incorporated by reference.

40. Defendants' tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

41. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiff demands judgment against Defendants as follows:

- a. On the First Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- b. On the Second Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- c. On the Third Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- d. On the Fourth Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- e. For such other relief as this court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: November 6, 2023
New York, NY

Respectfully yours,



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